

# Shahnaj Begum v. Purvanchal Vidhut Vitrana Nigam, Varanasi and Another

High Court of Judicature at Allahabad · Division Bench · 16 May 2023 · 2023:AHC:105852-DB · Writ - C No. 16441 of 2023 · **Writ disposed; 6.9(B) load objection to be decided in four weeks**

## HEADNOTE

Writ seeking revision of a bill raised on a sanctioned load of 32 KVA, against a stated load of 12 KW, disposed of on the licensee's statement that an objection under Para 6.9(B) of the Electricity Supply Code, 2005, would be decided by respondent no. 2 within four weeks after a reasonable opportunity of hearing.

## FACTUAL SUMMARY

Shahnaj Begum petitioned the Allahabad High Court against Purvanchal Vidhut Vitrana Nigam, Varanasi, and another, for revision of an electricity bill. The bill had been issued by treating the sanctioned load as 32 KVA, whereas the petitioner's load was 12 KW. Counsel for the licensee told the Division Bench that the petitioner could submit an objection under Para 6.9(B) of the Electricity Supply Code, 2005, before respondent no. 2, and that the objection would be decided in accordance with law within four weeks after a reasonable opportunity of hearing.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.9

Bill objection on sanctioned load

### HOLDING

A writ seeking revision of a bill raised by treating the sanctioned load as 32 KVA against a stated load of 12 KW is disposed of on the licensee's statement that the consumer may submit an objection under Para 6.9(B) of the Electricity Supply Code, 2005, before respondent no. 2, which shall be decided in accordance with law within four weeks after a reasonable opportunity of hearing. The Court did not itself revise the bill. ¶ 3-4

## PRINCIPLE TAGS

### clause-6.9-representation-time-bound-decision

On the licensee's statement, the writ was disposed of by permitting an objection under Para 6.9(B) of the Supply Code, 2005, to be decided by respondent no. 2 within four weeks after a reasonable opportunity of hearing. ¶ 3-4

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE BILL COMPUTED ON A SANCTIONED LOAD OF 32 KVA, AGAINST THE STATED LOAD OF 12 KW, IS LIABLE TO REVISION

Left to respondent no. 2 on an objection under Para 6.9(B), to be decided in accordance with law ¶ 2-4